

1.

CASE #	CASE NAME	HEARING NAME
CVPS2202954	LAPAY VS THE FAIRWAYS HOMEOWNER'S ASSOCIATION	MOTION TO BE RELIEVED AS COUNSEL FOR THE FAIRWAYS HOMEOWNER'S ASSOCIATION,, THE J.N. LEWIS GROUP, INC.

Tentative Ruling:

Motion to be Relieved as Counsel for Plaintiff Simone Marie Lapay GRANTED.

Attorney JC Chimoures is relieved as counsel of record for Plaintiff, effective upon the filing of the proof of service of the signed court order upon the client.

OSC re status of representation for Plaintiff Simone Marie Lapay is set for 7.20.26.

Hearing for Motion on Attorney's Fees is confirmed for 8.31.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501178	NEUMANN VS DALTON	MOTION TO SET ASIDE DEFAULT, DEFAULT JUDGMENT, BY DIANNE DALTON

Tentative Ruling: An application for mandatory relief based on an attorney affidavit of fault must be made "no more than six months after entry of judgment." (C.C.P. §473(b).) Unlike the excusable neglect provisions, there need be no showing of diligence in seeking relief short of the six-month time limit. (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1488.) The six-month period starts with entry of the default judgment, not the default. (*Sugasawara v. Newland* (1994) 27 Cal.App.4th 294, 297.)

The motion must state that it seeks mandatory relief under C.C.P. §473; if the motion refers only to discretionary relief, the court need not set aside the default even if the motion is accompanied by an affidavit indicating the attorney was at fault. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125.) The motion must also be accompanied by a copy of the answer or other pleading proposed to be filed. (C.C.P. §473(b).)

Relief must be granted even where the default resulted from inexcusable neglect by defendant's attorney, "so long as the attorney affidavit of fault shows the error was the fault of the attorney rather than the client." (*Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 57.) An admission of fault that does not include an explanation of the reason for the fault may still be sufficient (*Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 442-443), but because the court may deny relief if it finds the default or dismissal "was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect" (*Jimenez*, 97 Cal.App.5th 50, 57), the explanation of the reasons "can serve as a causation testing device" in determining whether the neglect was caused by the client or the attorney. (*Martin Potts & Associates*, 244 Cal.App.4th 432, 442 [internal quotation marks omitted].)

When relief is granted based on an attorney affidavit of fault, sanctions of reasonable compensatory legal fees and cost” to the opposing counsel or parties are mandatory. [C.C.P. §473(b).] The court may also impose sanctions against the culpable attorney of monetary sanctions up to \$1,000 to opposing parties, \$1,000 to the State Bar Client Security Fund, or “other relief as is appropriate.” (C.C.P. §473(c)(1)(A), (B) and (C).)

Entry of default was entered on 11.05.25 as to Defendant Dianne Dalton. Motion to Set Aside Default pursuant to CCP 473(b) was filed on 4.29.26, 5 months and 25 days from entry of the default. Defendant’s attorney Todd Fuson’s declaration provides sufficient indicators of mistake and neglect as required for mandatory relief.

Plaintiff’s Evidentiary Objections OVERRULED.

Motion to Set Aside Default and Clerk’s Judgment GRANTED.

Defendant’s proposed Answer attached as Exhibit A to the Motion shall be deemed filed as of the date of this Order.

OSC re default judgment is VACATED.

Default Judgment review is VACATED.

Request for Sanctions GRANTED. Defendant to pay Plaintiff’s counsel \$2989.82 (\$500/hr x 3 + \$1489.82 costs) within 30 days of this order.

Case Management Conference scheduled for 7.31.26. The parties are ordered to file with the Court ten days in advance of the CMC a joint declaration of counsel addressing their efforts to meet and confer in accord with Local Rule 3218 and Rules of Court, 3.724. The declaration should specifically address whether the parties have agreed upon a discovery timeline, and if so what that timeline is, and what form of alternative dispute resolution the parties believe is appropriate in this case. The updated Case Management Statement shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2502688	MIKER VS STATE OF CALIFORNIA	DEMURRER ON 1ST AMENDED COMPLAINT OF A. M., AS SUCCESSOR IN INTEREST TO AMANDA NENIGAR BY STATE OF CALIFORNIA

Tentative Ruling: In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal. 3d 120, 125). The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal. 4th 666, 672). However, a demurrer does not admit contentions, deductions or conclusions of fact or